



Notification Waiver Determination

Sydney Water - Windsor Sewerage Scheme Assets

Acquisition	Sydney Water Corporation (SWC) applied for a notification waiver in respect of its proposed acquisition of certain assets of Hawkesbury City Council (HCC), as described in the transaction documents provided as part of the application (the Acquisition). The assets to be acquired are part of the Windsor Sewerage Scheme and include the South Windsor wastewater treatment plant and the pumping stations and reticulation systems required to supply wastewater services to customers in the Hawkesbury City local government area.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	29 May 2026

Parties to the Acquisition	The acquirer, SWC, is a state owned corporation established under the <i>Sydney Water Act 1994</i> (NSW) and <i>State Owned Corporations Act 1989</i> (NSW). SWC provides water and wastewater services across the greater Sydney metropolitan region, but it currently does not provide wastewater services for most of the Hawkesbury City local government area. SWC does provide drinking water services for most of the Hawkesbury City local government area. The HCC is a body politic of the State of NSW constituted under the <i>Local Government Act 1993</i> (NSW). HCC provides wastewater services to properties in part of the Hawkesbury City local government area through the Windsor Sewerage Scheme. The Windsor Sewerage Scheme comprises two wastewater treatment plants at McGraths Hill and South Windsor, 21 pumping stations and the associated reticulation systems. The McGraths Hill wastewater treatment plant is not subject to the Acquisition SWC and the HCC do not compete for customers. Customers within the Windsor Sewerage Scheme area of operations cannot currently contract with SWC to provide wastewater services, and customers outside the Windsor Sewerage Scheme area of operations cannot contract with the HCC to provide wastewater services using the Windsor Sewerage Scheme. SWC and the HCC also acquire chemicals to be used in their respective wastewater systems, in particular, aluminium chlorohydrate, biosolids polymer ferric caustic soda, sodium hypochlorite, and methanol.
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Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no horizontal overlap between SWC and HCC in the supply of wastewater services to customers within the Windsor Sewerage Scheme’s areas of operation in the Hawkesbury City local government area b. the pricing of wastewater services is regulated and set by the Independent Regulatory and Pricing Tribunal of NSW c. while the parties have a small overlap in the acquisition of chemicals used in wastewater systems in Australia, any increment arising from the Acquisition is very limited. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC’s approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC’s interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act